

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The State Secretary for Justice and Security
P.O. Box 20301
2500 EH THE HAGUE

Date

August 3, 2023

Our reference

z2023-02188

Your letter of

April 13, 2023

Contact person

-

Your reference

4308957

Subject

Advice on the draft for the Law on Testing upon Departure

Dear Mr. Van der Burg,

In your letter dated April 13, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the proposal to amend the Aliens Act 2000 to provide for the possibility of investigating whether a foreign national suffers from a serious contagious disease in the context of expulsion or transfer (Law on Testing upon Departure) (hereinafter: the draft).

The AP has examined whether the draft concerning the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that, among other things, the principle of proportionality is met, by:

1. the draft being suitable to achieve the pursued objective of public interest or the requirements of protecting the rights and freedoms of others (suitability);
2. the objective not being reasonably achievable in an equally effective manner by other means that are less intrusive to the fundamental rights of the individuals involved (subsidiarity);
3. the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft being sufficiently clear and precise regarding the scope and being predictable in its application (legal certainty);
5. the draft sufficiently indicating under what circumstances and conditions personal data may be processed, thereby providing safeguards for the protection of personal data (substantive and procedural safeguards); and
6. the draft being binding under national law (constitutionality).

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The AP is of the opinion that the proportionality of the regulation regarding compulsory examination is insufficiently secured (point 3) and that it is not clear enough which rules are established to safeguard the personal privacy of the foreign national (point 5). The AP has objections to the draft on these points

and advises against continuing the procedure unless the objections are resolved.

Main points

- Explicitly express in the delegation basis that rules regarding compulsory examination can only be established if the examination required by the destination country is proportional.
- Provide better insight at the legislative level into which rules are established by ministerial regulation to safeguard the personal privacy of the foreign national.

Scope of the draft

The draft regulates the possibility to examine whether a foreign national suffers from a serious infectious disease designated by ministerial regulation in the event of expulsion or transfer. According to the draft, the foreign national must cooperate with such an examination if this is required for departure from the Netherlands. The draft also contains provisions for the case where the foreign national indicates resistance to the examination. The examination can then be conducted against the will of the foreign national, unless expulsion or transfer can be achieved through less strict means or personal circumstances of the foreign national stand in the way. The minister must also ensure—based on the judgment of a (institutional) doctor—that the expected consequences and risks for the health of the foreign national do not impede the execution of the examination against their will. The outcome of the examination and the judgment of the (institutional) doctor will be communicated to the minister based on the draft; the medical confidentiality is thus partially breached.

The explanation reveals the following about the background of the draft. If a foreign national does not voluntarily comply with the obligation to depart, it must be possible to enforce this departure. The COVID-19 epidemic has shown that the current coercive measures are not always sufficient for this purpose. Many countries implemented a COVID test or vaccination requirement for entry. Several countries, such as Niger and Bangladesh, still maintain this requirement. Under the current regulations, undergoing a COVID test is not enforceable. This gives foreign nationals the opportunity to prevent their expulsion by not cooperating with a COVID test. Attempts have been made to reach agreements with destination countries regarding alternatives, such as quarantine, but most of the approached countries have not accepted this as a structural alternative.

1 Transfer is relevant when another EU member state is responsible for processing the asylum application (see p. 6 of the explanation accompanying the draft). The basis for transfer is found in Regulation (EU) No. 604/2013 (Dublin III).

2 The draft refers to “an infectious disease designated by ministerial regulation for which there is a well-founded suspicion of contagiousness and serious danger to public health.” (see the proposed Article 63b, first paragraph, of the Aliens Act 2000).

3 The judgment is provided by the institutional doctor treating the foreign national, another institutional doctor, or a medical advisor from the Custodial Institutions Agency (see the proposed Article 63b, fourth and fifth paragraphs, of the Aliens Act 2000).

4 See the proposed Article 63b, ninth paragraph, of the Aliens Act 2000 and p. 14 of the explanation accompanying the draft.

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It must be seriously considered, according to the explanation, that in the future variants of the COVID-19 virus will lead to ongoing travel conditions or outbreaks of other infectious diseases will occur with similar consequences. A test will only be administered under compulsion in extreme cases.

Advice

Proportionality

Based on the concept, special personal data (data concerning health) is processed.⁵ The data

processing may relate to the outcome of a forced invasive examination for an infectious disease. Such an examination constitutes an infringement of bodily integrity.⁶ This also applies to a PCR test (corona test).⁷ The processing of the outcome of such a forced examination is only permitted if the infringement of bodily integrity is lawful.

In the concept, the forced examination aligns with the requirements set by the destination country. This concerns the requirement that the foreign national is examined, but also the method or intensity of the examination required by the destination country. It is defensible to align with the requirements of the destination country to this extent, as the enforcement of the return policy is the goal here, and that goal is also legitimate and cannot be achieved in another way.⁸ However, the proportionality requirement must of course also be met (point 3 of the assessment framework).⁹ Therefore, the requirements of the destination country should not be aligned with if those requirements are disproportionate.

5 Article 9, first paragraph, of the GDPR.

6 As protected by Article 3 of the Charter of Fundamental Rights of the European Union, Article 8 of the Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR), and Article 11 of the Constitution. That bodily integrity falls under the scope of Article 8 ECHR is confirmed, among other things, in ECHR September 25, 2018, ECLI:CE:ECHR:2018:0925JUD007663911 (Denisov/Ukraine), § 95.

7 See paragraph 2.6 of the explanation accompanying the concept and also, for example, District Court of North Holland February 16, 2021, ECLI:NL:RBNHO:2021:1269 and District Court of Amsterdam February 10, 2022, ECLI:NL:RBAMS:2022:418. PCR stands for Polymerase Chain Reaction. In a PCR test, an object (swab) is partially inserted into the nose/nasal cavity and/or the mouth/throat and moved back and forth for several seconds to collect mucus.

8 See point 8 of the preamble of Directive 2008/115/EC of the European Parliament and of the Council of December 16, 2008, on common standards and procedures in Member States for the return of third-country nationals who are illegally staying on their territory, OJ EU 2008, L 348/98.

9 See, for example, regarding a vaccination requirement for children in kindergarten: ECHR April 8, 2021, ECLI:CE:ECHR:2021:0408JUD004762113 (Vavříčka and others/Czech Republic), § 273 with reference to ECHR November 15, 2016, ECLI:CE:ECHR:2016:1115JUD002885911 (Dubská and Krejzová/Czech Republic), § 174-178. Also compare – regarding the proportionality of corona measures in relation to Article 11 ECHR (freedom of assembly) – ECHR March 15, 2022, ECLI:CE:ECHR:2022:0315JUD002188120 (Communauté genevoise d'action syndicale (CGAS)/Switzerland), § 81 with reference to ECHR October 15, 2015, ECLI:CE:ECHR:2015:1015JUD003755305 (Kudrevičius and others/Lithuania), § 142-144 and 146. Also compare – regarding the expulsion of foreigners who have been criminally convicted – ECHR October 18, 2006, ECLI:CE:ECHR:2006:1018JUD004641099 (Üner/Netherlands), § 54 and ECHR August 2, 2001, ECLI:CE:ECHR:2001:0802JUD005427300 (Boultif/Switzerland), § 46.

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Since the requirements set by the destination country will only be known at the time of establishing the delegated legislation, a proportionality assessment must be provided at that time; compulsory investigation may only take place if the investigation required by the destination country – considering the nature of the infringement on physical integrity – is proportional.

The AP is of the opinion that it is desirable to ensure the implementation and transparent accountability of this assessment by explicitly expressing this inherent limitation on the authority of the lower legislator in the delegation basis. This is particularly relevant because the outcome of the investigation can, according to the explanation, be communicated to the authorities of the destination country.

The AP advises that it should be explicitly stated in the delegation basis that rules regarding

compulsory investigation can only be established if the investigation required by the destination country is proportional.

Protection of personal privacy

The draft stipulates that rules will be established by ministerial regulation to safeguard the personal privacy of the foreign national. The explanation mentions that, for example, rules may ensure that only those data necessary to achieve the intended purpose are processed and that this data is destroyed as soon as possible.

The AP is of the opinion that the draft does not clearly indicate which rules will be established by ministerial regulation to safeguard the personal privacy of the foreign national. This clarity must be provided at the legislative level. These are rules intended to offer safeguards to citizens regarding the use of powers by the government. Furthermore, the rules mentioned in the explanation are not sufficient; attention must also be paid to which specific personal data is processed and who may access this data.

The AP advises that it should be made clearer at the legislative level which rules will be established by ministerial regulation to safeguard the personal privacy of the foreign national.

10 See pp. 21-22 of the explanation accompanying the draft. There will often be a transfer to a third country as referred to in Chapter V of the GDPR. The explanation cites Article 49, paragraph 1, under d of the GDPR as the basis for the transfer. See regarding this basis in the context of return policy: recitals 24 and 25 of Regulation (EU) 2019/1240 of the European Parliament and the Council of June 20, 2019, establishing a European network of immigration liaison officers, L 198/88.

11 See the proposed Article 63b, ninth paragraph, of the Aliens Act 2000.

12 See p. 22 of the explanation accompanying the draft.

13 See in this regard Article 2.21 of the Guidelines for Legislation.

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Workload

The legislative proposal entails some expansion of the volume of processing. It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been accounted for in the funding of the AP. This will need to be addressed appropriately to the Minister of Legal Protection as the responsible minister before the entry into force. This is for the benefit of the budget from which the AP is financed.

Publication of the advice

The AP intends to make this advice public no earlier than four weeks after its issuance on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,

Authority for Personal Data,

Monique Verdier

Vice Chair